

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407068	CRUZ VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiff Valerie Josefina Cruz
Responding party: Defendant Volkswagen Group of America, Inc.

Plaintiff Valerie Josefina Cruz brings this Song-Beverly action regarding a 2022 Audi A3 with structural, electrical, suspension, engine, emissions, and related defects. Plaintiff alleges that Defendant Volkswagen Group of America, Inc. ("Defendant") failed to replace the vehicle or promptly make restitution. The complaint, filed 12/18/24, asserts Song-Beverly claims and a negligent-repair claim against the dealer. On 10/21/25, Defendant served a C.C.P. § 998 offer to compromise for \$58,649.60, plus reasonable fees and costs. The parties agreed to the offer by 11/21/25. Defendant paid the settlement funds on 4/23/26.

Now, Plaintiff moves for an award of \$18,857.50 in fees, consisting of a \$11,886 lodestar, a 1.25 multiplier of \$2,971.50, and \$4,000 in anticipated fees for the reply and hearing. Plaintiff argues that counsel's lodestar fees are reasonable and that the case warrants a multiplier.

In an untimely opposition, Defendant argues that the requested rates and time are inflated and should be reduced. It argues that the case does not warrant a multiplier. It attributes its delay in filing an opposition to a calendaring error and asks the court to continue the hearing.

In reply, Plaintiff objects to a continuance and responds on the merits. Plaintiff argues that the requested rates are reasonable. Plaintiff argues that Defendant's line-item challenges are mere argument, not evidence. Plaintiff also replaces the \$4,000 estimate with \$1,782 for reviewing the opposition and preparing the reply, and requests \$990 for 2 anticipated hours of hearing preparation and attendance. Plaintiff therefore requests a revised total of \$17,629.50.

Analysis

Untimely Opposition

While Defendant filed the opposition to the motion one day late, the court has discretion to consider an untimely opposition. (See CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) More importantly, in filing a substantive reply, Plaintiff waived any defect or irregularity in the filing and service of the opposition. (See *Carlton v. Quint*

(2000) 77 Cal.App.4th 690, 697.) Accordingly, the court gives due consideration to Defendant's untimely opposition.

The Motion

The parties do not dispute that Plaintiff is the prevailing party under this Song-Beverly Act case. This Act contains a mandatory fee-shifting provision. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer **shall** be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) Thus, Plaintiff is entitled to fees under this provision. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) The amount of fees awarded by a trial court is subject to a very deferential standard of review. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49; see also *In re Lugo* (2008) 164 Cal.App.4th 1522, 1544-45 ("The only proper basis of reversal of the amount of an attorney fees award is if the amount awarded is so large or small that it shocks the conscience and suggests that passion and prejudice influenced the determination").) With respect to a fee award, it is well recognized that the trial court is in the best position to evaluate the work of the attorneys. (*Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 997.)

Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) However, "[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Martino*, 182 Cal.App.3d 553, 559. See also *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375-1376.)

The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

Lodestar

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167

Cal.App.4th 1379, 1394; *see also* *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Hourly Rates. A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Plaintiff's motion relies on the Declaration of Kevin Jacobson to establish counsel's experience, fees, and prior California court orders approving the same or comparable rates.

Plaintiff's base lodestar includes the following rates: Kevin Jacobson billed 0.3 hour at \$525/hour; Donald Mahnke billed 16.7 hours at \$425/hour; Joshua Kohanoff billed 0.5 hour at \$425/hour; Ellen Zakharian billed 6.8 hours at \$400/hour; and Stephanie Hovhannisyan billed 4.3 hours at \$395/hour. Plaintiff also requests fee for Derek Chipman's reply and anticipated hearing work at \$495 per hour.

Defendant argues the hourly rates should be reduced to \$350-\$450 per hour, without specifying a rate for each attorney. For fee-motion work specifically, Defendant proposes \$350/hour.

Here, Plaintiff's billing ledger reflects 28.6 hours of billed time. 28.3 of the 28.6 hours included in the base lodestar were billed at rates between \$395 and \$425 per hour, within Defendant's proposed range. Only Jacobson's 0.3 hour at \$525 exceeds that range. The requested hourly rates are not facially unreasonable, and the court declines to reduce them.

Defendant's Specific Challenges

Defendant attacks specific billing entries as follows:

Written Discovery. Defendant challenges 0.8 hours for preparation of written discovery requests and 4.8 hours for Plaintiff's responses to 4 sets of written discovery and compilation of document production. Zakharian spent 4.8 hours preparing Plaintiff's responses to Defendant's Form Interrogatories (1.2), Requests for Admission (0.7), Inspection Demand (0.9), and Special Interrogatories (1.6), and compiling Plaintiff's document production (0.4).

These do not appear facially unreasonable. The court makes no reduction.

Deposition Notices and Objections. Defendant challenges 0.2 hours to review its notice of Plaintiff's deposition and 0.7 hours to review objections to 2 PMK deposition notices. The challenged time is modest. The court makes no reduction.

Meet-and-Confer Correspondence. Defendant challenges 1.6 hours for a 4/2/25 correspondence and 0.5 hours for a 5/7/25 letter as duplicative and excessive. These entries concern distinct work. The 4/2/25 letter followed a 3/19/25 conference and

identified 7 categories of requested documents. The 5/7/25 letter addressed Defendant's subsequently served objections, and supported the later motion to compel. The court makes no reduction.

Motion to Compel. Defendant challenges 4 hours to prepare the notice, motion, declaration, separate statement, and proposed order, and 1.5 hours to review Defendant's opposition, declaration, and separate statement. The motion was contested and successful. Defendant then produced 154 pages of confidential documents, and it served its section 998 offer the next day. The hours are not unreasonable. The court makes no reduction.

Protective Order, Document Production, and Costs Memo. Defendant challenges 0.6 hours to review the proposed protective order, 0.5 hours to review the 154-page confidential production, and 0.5 hours to prepare the memorandum of costs. Each entry describes attorney work, and the time claimed is reasonable. The court makes no reduction.

Court Order. Defendant asks the court to strike a 0.3-hour entry to review and upload the order on Plaintiff's motion to compel because it combines legal and clerical work. Counsel reasonably needed to review the court's ruling and maintain it in the case file. The combined entry is only 18 minutes and permits meaningful review. The court makes no reduction.

Fee Motion. Defendant challenges 4.3 hours for reviewing instant fee motion. Fee-related services are compensable. With her reply, Plaintiff's counsel documents 3.6 hours at \$495/hour, or \$1,782, to review Defendant's opposition and declarations and to draft the reply. Plaintiff anticipates 2 additional hours at \$495/hour, or \$990, to prepare for and attend the hearing. Two total hours is a reasonable amount of time to prepare the reply and attend the hearing. At an hourly rate of \$495, this amounts to \$990.

The court therefore allows the full \$11,886 base lodestar plus \$990 for the reply and hearing, for an adjusted lodestar of \$12,876.

Multiplier

The Court denies the multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) Here, this was not a complicated case. Counsel's request based on contingency fee should already be accounted for in his hourly rate. The court declines to apply a multiplier.

Costs

Plaintiff does not request an award of costs in this motion.

Summary:

The Court exercises discretion to consider Defendant's untimely opposition. Grants the motion and awards a lesser amount of \$12,876 in fees. Deny Defendant's request to continue the hearing.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503273	QUIROZ VS JUZHONG TRUCKING INC.	DEMURRER

Tentative Ruling:

Moving party: Defendant City of Perris
Responding party: Plaintiff Janie Quiroz

This is a wrongful death action filed by Plaintiff Janie Quiroz on June 13, 2025 against Defendants Juzhong Trucking Inc., Home Depot U.S.A., Inc., City of Perris, IDI Logistics, LLC, Juzhong Qiu, State of California (CalTrans), and County of Riverside alleging 15 causes of action for 1) negligence, 2) negligence per se, 3) negligence, 4) negligence per se, 5) negligent hiring, retention, training and supervision, 6) negligent entrustment, 7) dangerous condition of public property, 8) public entity liability for failure to perform mandatory duties, 9) negligence, 10) negligence, 11) negligence, 12) negligence, 13) negligence, 14) public nuisance, and 15) wrongful death.

County of Riverside demurred and on October 22, 2025, the court sustained the demurrer to the 7th and 15th causes of action, with leave to amend. The court stayed the leave to amend pending an order on a motion to strike and a demurrer set to be heard on November 12, 2025 and December 3, 2025. The court then on November 12, 2025 granted Home Depot's motion to strike with leave to amend. Then on December 3, 2025, the court sustained City of Perr's demurrer to the 8th, 9th and 14th causes of action without leave to amend and as to the 7th and 15th sustained, with leave to amend.

On December 23, 2025, Plaintiff Quiroz filed a First Amended Complaint alleging 14 causes of action for negligence (1st, 3rd, 9th, 10th, 11th, and 12th); negligence per se (2nd and 4th); negligent hiring, retention, training, and supervision (5th); negligent entrustment (6th); dangerous condition of public property (7th); public entity failure to perform mandatory duties (8th); public nuisance (13th), and wrongful death (14th). City of Perris demurred to the FAC. Thereafter, the parties stipulated to the filing of a Second Amended Complaint. On April 28, 2026 the court signed an order, based on the parties' stipulation, allowing the filing of a Second Amended Complaint.